

Indian Tolls Act, 1864

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Union of India - Act

Indian Tolls Act, 1864

UNION OF INDIA

India

Indian Tolls Act, 1864

Act 15 of 1864

Published on 24 March 1864

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Indian Tolls Act, 1864

(Act

No. 15 of 1864

)

Last Updated 20th July, 2019

[Dated 24.3.1864.]

Short title given by the Indian Short Titles Act, 1897 (14 of 1897).

This Act has been declared to be in force in the Santhal Parganas by the Santhal Parganas Settlement Regulation, 1872 (3 of 1872), s. 3, in the C. P. and the Sambalpur District by the C. P. Laws Act, 1875 (20 of 1875).

It has been declared by notification under s. 3(a) of the Scheduled Districts Act, 1874 (14 of 1874), to be in force in the following Scheduled Districts, namely: -

The Districts of Hazaribagh, Lohardaga (now the Ranchi District, see Calcutta Gazette, 1899, Pt. I, p. 44), and Manbhum, and Pargana Dhalbhum and the Kolhan in the District of Singhbhum . . . see Gazette of India, 1881, Pt. I, p. 504.

The District of Lahaul . . . Ditto 1886, Pt. I, p. 301.

It has been extended, by notification under s. 5 of the last-mentioned Act, to the Scheduled District of Coorg See Gazette of India, 1878, Pt. I, p. 45.

The Act has been extended to Ajmer-Merwara along with Act 8 of 1851, see Gazette of India, 1889, Pt. II, p. 562; to the Scheduled Districts in Vizagapatam and Ganjam, see Fort St. George Gazette, 1899, Pt. I, p. 1486, and *ibid.* 1900, Pt. I, p. 1101, respectively; and to the District of Darjeeling, see Calcutta Gazette, 1934, Pt. I. p. 179

The Act has been extended to the Union territory of Pondicherry by Act 26 of 1968, s. 3 and the Schedule.

The Act is to be deemed to be and to have been in force in the Punjab, from the 24th March, 1864, see the Indian Tolls Act, 1888 (8 of 1888), s. 1 and tolls levied or purporting to have been levied under the Act before the passing of Act 8 of 1888, are to be deemed to have been lawfully levied-see s. 3, *ibid.*

The Act has been repealed in Mysore by Mysore Act 29 of 1958

The Act has been amended in Andhra Pradesh by Andhra Pradesh Act 17 of 1975.

An Act to amend Act 8 of 1851 (for enabling Government to levy Tolls on Public Roads and Bridges).

Preamble. - Whereas by Act 8 of 1851 (for enabling Government to levy Tolls on Public Roads and Bridges) authority was given for the levy of certain rates of toll [***]

[Certain words omitted by Act 38 of 1920, s. 2 and the First Schedule (w.e.f. 14.9.1920).]

; It is enacted as follows: -

1.

[Schedule of Act 8 of 1851 repealed, and another Schedule substituted.

[Omitted by the Devolution Act, 1920 (38 of 1920), s. 2 and the First Schedule (w.e.f. 14-9-1920).]

]

2.

Collectors of tolls may compound for tolls leviable under Act 8 of 1851 or this Act.

- Any person entrusted with the management of the collection of [tolls]

[The Indian Tolls Act, 1851.]

under Act 8 of 1851 may in his discretion compound for any period not exceeding one year with any person for a certain sum to be paid by such person for himself or for any vehicle or animal kept by him, in lieu of the rates of toll [authorised to be levied under the said Act 8 of 1851.]

[Substituted by Act 38 of 1920, s. 2 and the First Schedule, for 'specified in the Schedule to the said Act 8 of 1851 or in the Schedule to this Act'.]

3.

Power to extend Act.

- The State Government may extend this [Act to any place in which the said Act 8 of 1851]

[The Act now regulating tolls in the Presidency of Bombay is the Tolls on Roads and Bridges Act, 1875 (Bom.3 of 1875). That Act repealed Act 8 of 1851 in the Bombay Presidency, see s. 1, and declared that Act 15 of 1864

should be deemed to have been extended thereto as from the 30th July, 1864, see s. 2.]

is in force; and the State Government of any place in which the said Act 8 of 1851 is not in force may extend the said [Act 8 of 1851 and this Act to such place.] [[Act 8 of 1851 and this Act have been extended to Oudh (see Gazette of India, 1865, Pt. I, p. 777), the C.P. (see *ibid.*, Pt. I, 1871, p. 611) and to the District of Lakhimpur (see Assam Gazette, 1935, Pt. II, p.1025).

As to the authority of the Provincial Government in any part of the Provinces, not specified in s. 2 of Act 8 of 1851, to which that Act or this Act may be or have been extended see the Indian Tolls Act, 1888 (8 of 1888), s. 2(1).]]

4.

[Interpretation-clause. Local Government.]

[Repealed by the A.O.1937.]

[Schedule].

[Omitted by the Devolution Act, 1920 (38 of 1920), s. 2 and the First Schedule (w.e.f. 14- 9-1920).]

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